

25NWLC54596 25NWLC54596

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-31

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Case Number: 25NWLC54596 Hearing Date: July 31, 2026 Dept: Y

25NWLC54596: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK vs NICOLAS J ONTIVEROS

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Capital One, N.A., the supporting declaration, and all relevant court records.

In its motion, Plaintiff requests to vacate the Default Judgment entered by the Clerk on December 17, 2025 and dismiss the action without prejudice. Plaintiff has presented evidence via declaration that Defendant Nicolas Ontiveros filed for bankruptcy on March 17, 2026.

Pursuant to Code of Civil Procedure section 473(d), the Court may set aside any void judgment or order. Code of Civil Procedure section 128 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Based on the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's Motion To Vacate Judgment. Accordingly, the Judgment entered against Defendant on December 17, 2025 is vacated.

The Court further orders that the Complaint filed by Plaintiff and against Defendant is DISMISSED without prejudice.

Plaintiff to give notice.